

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

HOLCOMBE, et al.,

Plaintiffs,

v.

CARRINGTON MORTGAGE SERVICES,

Defendants.

Case No.: CIVSB2521085

**[TENTATIVE] ORDER
(1) GRANTING DEFENDANT’S
MOTION TO SET ASIDE OR
VACATE ENTRY OF VOID
DEFAULT; (2) DENYING
PLAINTIFFS’ REQUEST FOR
SANCTIONS; AND (3) DENYING
PLAINTIFF’S REQUEST FOR
INTERIM RELIEF**

I. INTRODUCTION

On July 22, 2025, plaintiff Charles Holcombe (Holcombe) and Wendy Day (Day) (collectively, Plaintiffs) initiated the instant action against defendant Carrington Mortgage Services, LLC (Defendant). The operative First Amended Complaint (FAC) filed July 31, 2025, alleges seven causes of action for (1) quiet title, (2) declaratory relief, (3) RESPA violation, (4) SCRA violation, (5) TILA violation, (6) Rosenthal FDCPA violation, and (7) emotional distress.

Plaintiffs allege they are the owners of 1217 Drake Ridge Crescent in Redlands, California (the Property). Plaintiffs allege Defendant claims an interest as servicer/creditor under a purported second mortgage (Loan #7000341377) but lacks any recorded assignment or valid standing.

On September 25, 2025, Plaintiffs filed a Request for Entry of Default on the Defendant, which the court clerk entered the same day. On September 12, 2025, Plaintiffs filed a Motion for Interim Relief. On October 16, 2025, Plaintiffs filed a Motion for Sanctions Pursuant to CCP Sections 128.5 and 128.7.

On April 21, 2026, Defendant filed the instant Motion to Set Aside and/or Vacate Entry of Default (Motion), supported by a Request for Judicial Notice and a declaration from Elizabeth Corral (Corral). Plaintiffs filed their Opposition to the Motion (Opposition), supported by a Request for Judicial Notice, a declaration from Holcombe and exhibits. No reply has been filed at this time. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling on these three motions.

II. REQUESTS FOR JUDICIAL NOTICE

A. Defendant's Requests

Defendant requests that the court take judicial notice of three court records marked as Exhibits 1-3 pursuant to Evidence Code sections 451 and 452. No specific subdivision of section 452 is cited, but subdivision (d) appears to be the most relevant. It provides that judicial notice may be taken of any state or federal court records.

A court may judicially notice a variety of matters, only relevant material is subject to such excused burden of evidentiary proof, and the court should decline judicial notice of material “that has no bearing on the limited legal question at hand.” (*Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063 (citing *People v. Stoll* (1989) 49 Cal.3d 1136, 1144, fn. 5.)

In the case of court records, not all matters contained therein (*e.g.*, pleadings, affidavits, etc.) are indisputably true. While the existence of any document in a court file may be judicially noticed, the truth of matters asserted in such documents – including the factual findings of the judge who was sitting as the trier of fact – is not necessarily subject to judicial notice unless the document is an order, statement of decision, or judgment. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-69; *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.)

The Court GRANTS Defendant's Request for Judicial Notice and judicially notices the existence of Exhibits 1-3 as they are relevant to the legal matter at hand and are court records. The Court further judicially notices the truth of matters asserted in Exhibit 3 as it is a court order.

B. Plaintiffs' Request

Plaintiffs requests the court take judicial notice of Exhibits A-N pursuant to Evidence Code section 452, subdivisions (d) and (h).

The Court GRANTS the request for judicial notice of Exhibits A, B, I, J, L, M and N. But the Court DENIES Plaintiff's request to judicial notice Exhibits C, D, E, F, G, H and K as these are not proper facts for judicial notice.

III. DEFENDANT'S MOTION TO SET ASIDE DEFAULT

Defendant motions for the court to set aside the subject default pursuant to section 473, subdivision (d) of the Code of Civil Procedure. Citing *Peralta v. Heights Med. Ctr., Inc.* (1988) 485 U.S. 80, 84-85, Defendant argues if there is no valid service of the summons, any default or default judgment violates due process of law and can be set aside at any time. Defendant argues Plaintiffs failed to serve an individual authorized to accept service on behalf of Defendant entity such as an officer, manager, or registered agent for service of process. Instead, Defendant contends the Proof of Service indicates that the party served was the entity "Carrington Mortgage Services, LLC" and not an individual authorized to accept service on behalf of the Defendant.

Defendant contends the Proof of Service also indicates service was done via substitute service on “Robert Doe,” a security guard and service was at a “home” and not a business.

Defendant argues the facts here are comparable to those in *Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1424 (*Ramos*) where the proof of service indicated service was accomplished in a manner not authorized by the Corporations Code. Further, Defendant argues the summons and complaint were not thereafter mailed to a person authorized to accept service for Defendant, meaning service was never completed pursuant to Code of Civil Procedure section 415.20(a).

In their Opposition, Plaintiffs first argue the instant Motion was not properly served. Plaintiffs further argue that the “existing record affirmatively defeats Defendant’s voidness showing.” Plaintiffs contend *Ramos* is distinguishable from the instant action as *Ramos* involved a defect apparent from the proof of service itself. Here, Plaintiffs argue Defendant does not identify an equivalent facial omission. Further, Plaintiffs argue on October 20, 2025, the court signed an order finding that Defendant was duly served with the Summons and FAC. Plaintiffs contend the August 25 service record and process-server declaration indicates Defendant was also served via “Overnight Delivery.”

As a preliminary matter, the Court finds that Plaintiffs waived any defect regarding filing and service of the instant Motion by arguing on the merits in their Opposition. (*Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 58-59.)

As to the Motion’s merits, Defendant requests relief under section 473, subdivision (d), on the grounds that the proof of service for the Summons and Complaint is void on its face.

“A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” (*Ramos, supra*, 223 Cal.App.4th at p. 1440). The judgment-

roll is limited to the summons, proof of service of the summons, complaint, request for entry of default, copy of the judgment, notice of any ruling overruling a demurrer interposed by the defendant and proof of service thereof, and, if service was by publication, affidavit for publication and order directing it. (*Ibid.*, citing Code of Civ. Proc., § 670, subd. (a).)

Here, the proof of service filed August 25, 2025, indicates that the party served was “Carrington Mortgage Services, LLC” at “1600 South Douglass Road, Suite 200 Anaheim, CA 92806.” The Defendant was served by substituted service by leaving the documents with “Robert Doe- security guard” at a “home.”

Code of Civil Procedure Section 416.10 permits service on a corporation that is not a bank by way of service on an individual or entity designated as an agent for service of process (Code of Civ. Proc., § 416.10, subd. (a)); service on one of the 11 officers or managers of the corporation specified in section 416.10, subdivision (b); service on a person authorized by the corporation to receive service (§ 416.10, subd. (c)); or service in a manner authorized by the Corporations Code (§ 416.10, subd. (d)). Section 415.20 permits substituted service on a person specified in section 416.10 by leaving the summons and complaint “in his or her office ... with the person who is apparently in charge thereof.” (Code of Civ. Proc., § 415.20, subd. (a), emphasis added.)

Here, the proof of service indicates it was effectuated by substituted service to “Robert Doe- security guard.” On its face, the Proof of Service fails to indicate service is being made to one of the persons specifically set forth in section 416.10 as being capable of accepting service on behalf of the corporation. Further, the Proof of Service indicates the address is a “home,” which clearly fails to meet the requirement under section 415.20 that service be made to the individual “in his or her office.” Based on the foregoing, the Court finds the order entering

default in the instant action to be void on its face and therefore is GRANTING the motion to set aside the default.

IV. PLAINTIFF'S MOTION FOR SANCTIONS

Plaintiffs move for sanctions against Defendant for \$85,000 to \$100,000 pursuant to Code of Civil Procedure Sections 128.5 and 128.7. Plaintiffs contend notice was provided to the Defendant to withdraw or correct the subject failures, but Defendant has not done so within the safe-harbor period and as such, sanctions are appropriate. Plaintiffs argue Defendant failed to respond to the FAC and continues its violations of the law as set forth in the FAC.

The Court DENIES Plaintiffs' request for sanctions in its entirety. Plaintiffs' motion fails to set forth what actions from the Defendant pursuant to section 128.5 or section 128.7, subdivision (b), would mandate the sanctions requested.

V. MOTION FOR INTERIM RELIEF

Plaintiffs' motion for "interim relief," including evidentiary preclusion, sanctions and orders to be issued mandating Defendant to comply with certain regulations.

The Court DENIES Plaintiff's request for "interim relief." Plaintiffs' request for sanctions was previously addressed in their motion for sanctions. As for their remaining requests, Plaintiffs fail to cite to any legal authority that the court is authorized to grant the relief requested.

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VI. CONCLUSION

1. Defendant's Motion to Set Aside or Vacate Entry of Void Default is GRANTED.
2. Plaintiffs' Request for Sanctions is DENIED.
3. Plaintiff's Request for Interim Relief is DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court